

Veeru v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 20 May 2022 · Writ-C No. 4466 of 2022 · **Writ disposed; 6.8 objection liberty; coercive action stayed**

HEADNOTE

A writ seeking to quash a 31 August 2020 assessment/demand of the Executive Engineer, U.P. Power Corporation Ltd., Electricity Distribution Block Babrala, and to compel consideration of the consumer's objection, was disposed of without any opinion on merits. Liberty was granted to submit an objection under paragraph 6.8 of the U.P. Electricity Supply Code, 2005 within four weeks; if filed, the distribution licensee is to decide it in accordance with law, preferably within four weeks, after hearing. Coercive action on the demand is stayed for eight weeks or until disposal of the objection, whichever is earlier.

FACTUAL SUMMARY

The petitioner, Veeru, filed a writ petition in the Allahabad High Court seeking certiorari to quash an assessment order dated 31 August 2020 issued by the Executive Engineer, U.P. Power Corporation Ltd., Electricity Distribution Block, Babrala, and a mandamus directing that officer to consider the petitioner's objection to the provisional assessment and pass a fresh final assessment. Counsel for the distribution licensee stated on instructions that the petitioner may file an objection against the impugned demand, which would be decided in accordance with law within a time-bound period.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

objection to assessment as alternate remedy

HOLDING

Without examining merits, the Court disposed of the writ by granting liberty to submit an objection under paragraph 6.8 of the U.P. Electricity Supply Code, 2005 within four weeks; if submitted, the licensee must decide it in accordance with law, preferably within four weeks, after a reasonable opportunity of hearing, and no coercive action on the impugned demand is to be taken for eight weeks or until disposal of the objection, whichever is earlier. ¶ 1

PRINCIPLE TAGS

alternative-remedy-statutory-appeal-6.8 The writ against the 31 August 2020 assessment/demand was not decided on merits; the consumer was relegated to the paragraph 6.8 objection before the distribution licensee. ¶ 1

fresh-objection-under-clause-6.8 Liberty was given to submit a paragraph 6.8 objection within four weeks, to be decided after hearing, with a short stay of coercive recovery. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE 31 AUGUST 2020 ASSESSMENT AND OF ANY PARAGRAPH 6.8 OBJECTION

The Court expressly declined to express any opinion on the merits of the petitioner's case. ¶ 1